

“However, an individual may be served by substitute service only after a good faith effort at personal service has first been made: the burden is on the plaintiff to show that the summons and complaint ‘cannot with reasonable diligence be personally delivered’ to the individual defendant.” (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 389 [citing § 415.20, subd. (b); *Evartt v. Superior Court* (1979) 89 Cal.App.3d 795, 801.]) “Two or three attempts to personally serve a defendant at a proper place ordinarily qualifies as ‘reasonable diligence.’ ” (*Ibid.*; see also *Rodriguez v. Cho* (2015) 236 Cal.App.4th 742, 750.)

Here, Moving Party correctly argues that service was not proper pursuant to Code of Civil Procedure section 415.20(b) because Plaintiff did not establish a good faith effort at personal service prior to serving the summons and complaint by mail.

Plaintiff filed a “Declaration of Mailing” that was signed by Jesus Alvarez who declared that, on “October 21, 2025, after substituted service was made,” he mailed the summons and complaint. The declaration is devoid of any discussion regarding Alvarez’s good faith attempts to personally serve the summons and complaint on Moving Party prior to service by mail. As such, the declaration does not establish that the summons and complaint could not, with reasonable diligence, be personally delivered on Moving Party.

As discussed above, Plaintiff bears the burden of establishing the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service. The motion is unopposed, however, and therefore Plaintiff has not carried this burden.

Moreover, Plaintiff’s failure to oppose the motion is considered an implied concession regarding the merits of the arguments presented in the motion. (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20; *DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566, *as modified* (Jan. 25, 2000) [“By failing to argue the contrary, plaintiffs concede this issue.”]; *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 [holding that “by failed to address” an issue, the issue is “impliedly concede[d].”]; and *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 [“Its failure to address the threshold question of intent effectively concedes that issue and renders its remaining arguments moot.”].)

Given the above, the Motion is **GRANTED**.

Moving Party to give notice.

2. 30-2025-01521534

**Marquez vs. Kia
America, Inc.**

**1. Case Management Conference
2. Motion to Strike Portions of Complaint**

Defendant Kia America, Inc. (hereinafter “Kia”) moves to strike paragraphs 32 and 59, and Item 5 from the Prayer, which seek civil penalties pursuant to Civil Code section 1794(c) on the grounds that the Complaint fails to allege facts to show compliance with Code of Civil Procedure section 871.24 and Plaintiff is therefore not entitled to recover civil penalties pursuant to Civil Code section 1794(c).

Initially, the Court notes that Plaintiff’s counsel failed to meet and confer in violation of CCP§435.5. Further lack of adherence to code may result in sanctions.

Based on applicable law, and as set forth below, the **Motion is GRANTED with 20 days leave to amend.**

This is an action for Violations of the Song-Beverly Consumer Warranty Act (CCP §1790, et seq.). Defendant moves for an order striking paragraphs 32 and 59 of the Complaint, and Item 5 from the Prayer, which seek civil penalties pursuant to Civil Code section 1794(c).

Defendant contends that Plaintiff did not plead compliance with CCP §871.24 and is therefore not entitled to civil penalties.

CCP §871.24 provides, in relevant part:

- (b) At least 30 days prior to the commencement of an action seeking civil penalties under subdivision (c) of Section 1794 of the Civil Code, the consumer shall do all of the following:
- (3) Notify the manufacturer of the consumer's name, the accurate Vehicle Identification Number ("VIN") of the motor vehicle, and a brief summary of the repair history and problems with the motor vehicle.
- (4) Demand that the manufacturer repurchase or replace the motor vehicle.

(e)(1) A request for or action seeking civil penalties under subdivision (c) of Section 1794 of the Civil Code shall not be allowed or maintained if both of the following conditions are present:

(A) Within 30 days after receipt of the notice, the manufacturer makes an offer of restitution or replacement of the motor vehicle for the amount provided by subdivision (d) of Section 1793.2 of the Civil Code and Section 871.27, plus reasonable attorney's fees and costs, if the consumer is represented by an attorney.

(B) The motor vehicle replacement or restitution is completed within 60 days from the date of receipt of the original notice.

(h) An action seeking restitution or replacement under Section 871.20 may be commenced without compliance with subdivision (a). In that event, the consumer shall have possession of the motor vehicle at the time of the filing of the complaint, and shall not seek civil penalties, whether by amendment of the complaint or otherwise. If, however, notice is provided pursuant to subdivision (a) and the manufacturer fails to comply with their obligations under subdivision (e), the consumer may commence an action for restitution or replacement, including, but not limited to, civil penalties under subdivision (c) of Section 1794 of the Civil Code.

In opposition, Plaintiff does not deny that Section 871.24 is applicable to this case. However, Plaintiff contends that he has complied with the statute. In support of that position, Plaintiff submits the Declaration of Attorney Joon Kim with three exhibits attached. Yet, the grounds for a motion to strike (or opposition thereto) must appear on the face of the pleading under attack, or from matters which the court may judicially notice (e.g., the court's own files or records). [CCP § 437; *CPF Agency Corp. v. R&S Towing Service* (2005) 132 CA4th 1014, 1032.] Plaintiff's facts and evidence in support of the Opposition are outside the four-corners of the Complaint and cannot be considered.

		Had counsel properly met and conferred prior to filing this motion, it likely would not have been necessary. <u>Accordingly, the Motion is GRANTED with 20 days leave to amend.</u> Defendant to give notice.
4.	30-2024-01440591 Feldblumb vs. Ruvalcaba	1. Motion to Compel Deposition (Oral or Written) Defendants Bernardo Ruvalcaba and Elba Leticia Lopez Ruvalcaba (together, “Defendants”) seek an order compelling third party Richard Mungo, D.D.S. to produce documents in response to the subpoena duces tecum served on September 9, 2025. Based on applicable law, as set forth herein, said motion is DENIED. Preliminarily, the Court notes that the proof of service of this motion does not indicate that the deponent was served. While Attorney Leeper declares that this motion was personally served on the deponent, “as the attached proof of service sets forth,” there is no such indication in the proof of service. (Leeper Decl. ¶ 8.) Even if the motion had been properly served, however, it is untimely. A party may serve a nonparty with a deposition subpoena commanding the production of business records for copying. (Code Civ. Proc., §§ 2020.010, subds.(a)(3), (b), 2020.020, subd. (b).) Proper service of a deposition subpoena obligates any resident of California to appear, testify and produce whatever documents or things are specified in the subpoena; and to appear in any proceedings to enforce discovery. (Code Civ. Proc., § 2020.220, subd. (c).) If the nonparty deponent does not comply, the requesting party may move for an order directing compliance with the subpoena. (See Code Civ. Proc., § 2025.480; see also Code Civ. Proc., § 1987.1.) Such a motion may be made pursuant to the authority for motions to compel depositions generally under Code of Civil Procedure section 2025.480. (See <i>Unzipped Apparel, LLC v. Bader</i> (2007) 156 Cal.App.4th 123, 127, 131.) The motion must be brought within 60 days after completion of the deposition record. (CCP § 2025.480(b); see <i>Unzipped Apparel, LLC v. Bader</i> (2007) 156 Cal.App.4th 123, 127) The deposition record is “complete” as of the “date specified for production” or the date objections are served. It is irrelevant that some documents might be produced thereafter. (<i>Board of Registered Nursing v. Sup.Ct. (Johnson & Johnson)</i> (2021) 59 Cal.App.5th 1011, 1032-1033.) “A nonparty must comply (or not) with the subpoena on the date specified for production. If a party is not satisfied with the nonparty's compliance, the party has 60 days in which to meet and confer with the nonparty. These meet and confer efforts do not affect the mandatory 60-day deadline. The meet and confer process is part of the 60-day period in which to file a motion; it does not extend it.” (<i>Board of Registered Nursing v. Superior Court of Orange County, supra</i>, 59 Cal.App.5th at 1034.) The 60-day deadline is mandatory and jurisdictional. (<i>Weinstein v. Blumberg</i> (2018) 25 Cal.App.5th 316, 321.) Here, the date for production was September 24, 2025. (Leeper Decl., ¶ 2, Exh. A.) Attorney Leeper declares that the deponent neither objected to the subject subpoena nor has the custodian